





## THE PARTIES

### PARTY A — COMPANY

**Westminster Green Solutions Pty Ltd**

ABN 13 155 901 723

Trading as: Health Plus International

Unit 4, 44-46 Keeler Street

Carlingford NSW 2118

**Represented by:** Abhay J Kumar

Sole Director & Sole Shareholder

wgs.aus@gmail.com | +61 411 459 755

### PARTY B — CONSULTANT

**Reji Varghese**

Business Development Consultant

Honorary Board Director — International

Operations

26 Mubo Crescent

Holsworthy NSW 2173

**ABN / TFN:** [Insert Reji ABN/TFN]

[Reji Email] | [Reji Phone]

**Background:** Westminster Green Solutions Pty Ltd (the **Company**) operates HealthPlus International as a registered business trading name, providing healthcare workforce placement services to regional and remote communities in NSW under an employer of record model. Reji Varghese has contributed materially to the development and growth of the HealthPlus International business and the parties have agreed to formalise a profit sharing and business development arrangement on the terms set out in this Agreement.

## THE PARTIES AGREE AS FOLLOWS:

## PART 1 — DEFINITIONS AND INTERPRETATION

### 1. Definitions

In this Agreement, the following definitions apply unless the context requires otherwise:

|                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|---------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| "Agreement"         | This Profit Sharing and Business Development Agreement and all schedules attached hereto, as amended from time to time by written consent of both parties.                                                                                                                                                                                                                                                                                                                                                                             |
| "Commencement Date" | The date this Agreement is fully executed by both parties.                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
| "Company"           | Westminster Green Solutions Pty Ltd ABN 13 155 901 723 trading as Health Plus International.                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| "Consultant"        | Reji Varghese, acting in the capacity of Business Development Consultant and Honorary Board Director — International Operations.                                                                                                                                                                                                                                                                                                                                                                                                       |
| "Gross Revenue"     | All revenue received by the Company from the HealthPlus International trading business, including placement fees, management fees, on-hire margins and any other income directly attributable to the HealthPlus International business.                                                                                                                                                                                                                                                                                                |
| "Gross Expenses"    | All direct costs and overhead expenses incurred in operating the HealthPlus International business, including but not limited to: worker wages and on-costs, superannuation, workers compensation insurance, payroll tax, recruitment costs, accommodation costs, visa and vetting costs, marketing, technology, professional services, and any other expense directly attributable to the business. For the avoidance of doubt, the Director Salary of Abhay J Kumar (if any, as declared to the ATO) is included as a Gross Expense. |
| "Net Profit"        | Gross Revenue minus Gross Expenses minus Income Tax payable by the Company on HealthPlus International profits, calculated on an annual basis for each Financial Year.                                                                                                                                                                                                                                                                                                                                                                 |
| "Financial Year"    | The period from 1 July to 30 June each year.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| "Profit Share"      | 50% (fifty percent) of Net Profit payable to the Consultant in accordance with this Agreement.                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| "Retirement"        | The voluntary cessation by the Consultant of active business development and operational duties under this Agreement, evidenced by written notice to the Company, without the Consultant surrendering entitlement to Passive Royalties under clause 7.                                                                                                                                                                                                                                                                                 |



|                       |                                                                                                                                                                                                                         |
|-----------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| "Passive Royalty"     | The ongoing payment to the Consultant (or their estate) following Retirement, calculated as 50% of Net Profit of the HealthPlus International business, payable in accordance with clause 7.                            |
| "Restraint Period"    | A period of three (3) years commencing on the date of full exit or termination of this Agreement.                                                                                                                       |
| "Restraint Territory" | The State of New South Wales, Australia.                                                                                                                                                                                |
| "Competing Business"  | Any business that provides healthcare workforce placement, labour hire or employer of record services to healthcare facilities, aged care services or community care services in regional or remote areas of Australia. |
| "Dissolution Event"   | The event described in clause 12, being the full and final termination of the HealthPlus International trading business.                                                                                                |
| "Next of Kin"         | The spouse, de facto partner, or adult children of a deceased party, as nominated in writing by that party. If no nomination is made, Next of Kin is determined by the intestacy laws of NSW.                           |
| "Business Day"        | A day that is not a Saturday, Sunday, or public holiday in New South Wales.                                                                                                                                             |

## PART 2 — ROLES AND RELATIONSHIP

### 2. Nature of Relationship

- 2.1** The Consultant is engaged by the Company as an independent contractor. Nothing in this Agreement creates a relationship of employment, partnership, joint venture, or agency between the parties.
- 2.2** The Consultant is solely responsible for their own tax obligations, including income tax and GST (if registered), arising from payments received under this Agreement.
- 2.3** The Company shall not withhold PAYG tax from payments to the Consultant. The Consultant is responsible for declaring all income received under this Agreement to the Australian Taxation Office.

### 3. Roles and Responsibilities

- 3.1** The Consultant shall perform the following roles in connection with the HealthPlus International business:
- (a)** Business Development Executive — sourcing new client facilities, healthcare workers, and international recruitment pipelines; building and maintaining business relationships; and developing new revenue streams for the business;
  - (b)** Honorary Board Director — International Operations — providing strategic direction on international worker sourcing, particularly from the Philippines, India and Eastern Europe; advising on international compliance, credentialling and placement processes.
- 3.2** Abhay J Kumar, as Sole Director of the Company, retains full legal, financial, and operational control of Westminster Green Solutions Pty Ltd and the HealthPlus International business at all times. The title of Honorary Board Director conferred upon the Consultant does not grant any directorial powers, voting rights, or fiduciary duties under the Corporations Act 2001 (Cth).
- 3.3** The Consultant shall not incur any financial liability or obligation on behalf of the Company without the prior written approval of the Director.
- 3.4** The parties shall cooperate in good faith and communicate regularly to ensure the growth and integrity of the HealthPlus International business.

## PART 3 — PROFIT SHARING

### 4. Profit Sharing Arrangement

**4.1** In consideration of the Consultant performing the roles and services described in clause 3, the Company shall pay the Consultant a Profit Share equal to 50% of Net Profit of the HealthPlus International business in each Financial Year.

**4.2** Net Profit shall be calculated as:

**Net Profit = Gross Revenue minus Gross Expenses minus Income Tax**

All three components calculated on an annual basis for each Financial Year ending 30 June.

**4.3** The Profit Share shall be calculated and paid within 60 days of the end of each Financial Year, following preparation of the annual accounts.

**4.4** The Company shall provide the Consultant with a written Profit Share Statement for each Financial Year, detailing Gross Revenue, Gross Expenses, Income Tax, Net Profit, and the Profit Share amount payable.

**4.5** The Consultant has the right, at their own cost, to request an independent review of the Profit Share Statement by a registered accountant once per Financial Year. The Company must provide all reasonable access to financial records for the purpose of such a review.

**4.6** If in any Financial Year the HealthPlus International business records a Net Loss (i.e. Gross Expenses and Tax exceed Gross Revenue), no Profit Share is payable for that year. Losses are not carried forward to offset future Profit Share.

**4.7** The Consultant may, by written agreement with the Director, elect to take interim Profit Share drawings during the Financial Year, subject to adjustment at year end. Any overpayment of interim drawings is recoverable by the Company from the Consultant within 30 days of the Profit Share Statement.

## PART 4 — SALE OR ACQUISITION OF THE BUSINESS

### 5. Rights on Sale or Acquisition

**5.1** If the Company sells, transfers, or otherwise disposes of the HealthPlus International business or its goodwill, assets or client base (in whole or substantially in whole) to a third party ("**Sale Event**"), the Consultant is entitled to receive 50% of the Net Sale Proceeds.

**5.2 Net Sale Proceeds** means the total consideration received by the Company in connection with the Sale Event (whether in cash, shares, deferred payments or other form), minus:

- (a) all reasonable transaction costs, including legal fees, accounting fees, and broker commissions; and
- (b) any outstanding liabilities of the HealthPlus International business at the date of sale that are assumed or discharged from sale proceeds.

**5.3** The Director shall not enter into a Sale Event without:

- (a) giving the Consultant at least 60 days written notice of the proposed sale; and
- (b) providing the Consultant with full details of the proposed terms, including the proposed purchase price and any deferred or contingent components.

**5.4** The Consultant does not have a right of veto over a Sale Event. However, the Director must ensure the sale agreement contains provisions protecting the Consultant's entitlement to 50% of Net Sale Proceeds under this clause.

**5.5** Payment of the Consultant's 50% share of Net Sale Proceeds shall be made within 14 days of the Company receiving each tranche of sale consideration (including any deferred payments).

**5.6** A Sale Event does not terminate this Agreement unless the parties agree otherwise in writing. If the HealthPlus International business continues under a new owner, the parties shall negotiate in good faith regarding the continuation of the profit sharing arrangement with the acquirer.

## PART 5 — TERMINATION BY THE COMPANY

### 6. Termination by the Company

**6.1** The Company (acting through its Director) may terminate this Agreement in the following circumstances:

**(a) Termination for Cause** — immediately upon written notice to the Consultant if the Consultant:

- (i) commits an act of fraud, dishonesty or serious misconduct in connection with the business;
- (ii) materially breaches this Agreement and fails to remedy that breach within 30 days of written notice requiring remedy;
- (iii) is convicted of a criminal offence involving moral turpitude or dishonesty;
- (iv) breaches the confidentiality provisions of clause 9 or the restraint provisions of clause 10 while this Agreement is on foot; or
- (v) becomes bankrupt or enters into any arrangement with creditors.

**(b) Termination for Convenience** — upon not less than six (6) months written notice to the Consultant, at any time and for any reason.

**6.2 Consequences of Termination for Cause:** If this Agreement is terminated for cause under clause 6.1(a):

- (a)** the Consultant is entitled to receive their Profit Share accrued up to the date of termination (pro-rated for any partial Financial Year based on management accounts);
- (b)** the Consultant is not entitled to any Passive Royalty, ongoing payments, or goodwill payment; and
- (c)** the Restraint Obligations under clause 10 apply for the full Restraint Period.

**6.3 Consequences of Termination for Convenience:** If this Agreement is terminated for convenience under clause 6.1(b):

- (a)** the Consultant is entitled to receive their Profit Share accrued up to the date of termination (pro-rated based on management accounts);
- (b)** the Consultant is entitled to receive a **Goodwill Settlement** equal to 50% of the independently assessed goodwill value of the HealthPlus International business at the date of termination. The goodwill assessment shall be carried out by a mutually agreed registered business valuer (or if no agreement is reached within 14 days, by a valuer appointed by the President of the Institute of Chartered Accountants Australia and New Zealand). The cost of valuation is borne equally by both parties;
- (c)** the Goodwill Settlement shall be paid within 90 days of the valuation being finalised; and
- (d)** the Restraint Obligations under clause 10 apply for the full Restraint Period.



## PART 6 — VOLUNTARY EXIT BY THE CONSULTANT

### 7. Retirement of the Consultant

7.1 The Consultant may at any time elect to retire from active business development and operational duties by giving not less than six (6) months written notice to the Director ("**Retirement Notice**").

7.2 Retirement under this clause does not trigger a Dissolution Event. The Company shall continue to operate the HealthPlus International business following the Consultant's retirement.

7.3 Following retirement, the Consultant shall receive a **Passive Royalty** equal to 50% of Net Profit of the HealthPlus International business, calculated and paid annually in accordance with clause 4.3 to 4.5, for as long as:

- (a) the HealthPlus International business continues to generate Net Profit; and
- (b) the Consultant (or their estate under clause 8) remains entitled under this Agreement.

7.4 The Passive Royalty is perpetual — it does not expire by reason of time alone.

7.5 During retirement, the Consultant shall have no obligation to perform any duties for the Company but shall remain bound by the confidentiality obligations in clause 9. The Restraint Obligations in clause 10 do not apply to a retired Consultant who continues to receive Passive Royalties.

7.6 The Passive Royalty shall cease only upon:

- (a) a Dissolution Event under clause 12;
- (b) the Consultant (or their estate) executing a written deed surrendering all entitlements under this Agreement; or
- (c) the expiry of the 10-year payment period to Next of Kin under clause 8.2, where the Consultant has died.

### 8. Voluntary Exit Without Retirement

8.1 If the Consultant wishes to fully exit this Agreement (i.e. surrender all entitlements including any Passive Royalty), the Consultant must give not less than six (6) months written notice to the Director.

8.2 A full exit under this clause triggers a Dissolution Event under clause 12 unless the Director agrees in writing to continue operating the HealthPlus International business independently. If the Director elects to continue:

- (a) the Consultant is entitled to 50% of the independently assessed goodwill value of the business at the date of exit (calculated as per clause 6.3(b)); and
- (b) the Consultant receives their accrued Profit Share to the date of exit.

8.3 Following a full exit, the Restraint Obligations in clause 10 apply for the full Restraint Period.

## PART 7 — DEATH OF EITHER PARTY

### 9. Death of the Consultant

9.1 Upon the death of the Consultant, the Consultant's entitlement under this Agreement passes to their nominated Next of Kin.

9.2 The Next of Kin shall receive the Passive Royalty (or the active Profit Share if the Consultant had not yet retired) for a maximum period of **ten (10) years** from the date of the Consultant's death.

9.3 After the expiry of the 10-year period under clause 9.2, all entitlements of the estate and Next of Kin under this Agreement cease. The Company shall have no further obligation to pay any royalty or share of profit to the estate or Next of Kin.

9.4 The Consultant shall nominate their Next of Kin in writing within 30 days of signing this Agreement. The nomination may be updated at any time by written notice to the Director. If no nomination is made, the entitlement passes in accordance with the intestacy laws of NSW.

9.5 The Next of Kin has no obligation to perform any duties and is not bound by the Restraint Obligations in clause 10.

9.6 The Restraint Obligations in clause 10 do not pass to the estate or Next of Kin.

### 10. Death of Abhay J Kumar (Director)

10.1 Westminster Green Solutions Pty Ltd is a separate legal entity. The death of Abhay J Kumar does not automatically terminate this Agreement.

10.2 Upon the death of Abhay J Kumar, the Company shall continue to be bound by this Agreement. The Company's obligations pass to Abhay J Kumar's estate and any successor director of the Company.

10.3 If the estate of Abhay J Kumar elects to wind up the Company or cease the HealthPlus International business within 12 months of the death, a Dissolution Event occurs under clause 12 and the Consultant is entitled to their 50% of Net Assets at dissolution.

10.4 If the Company continues to operate, the Consultant continues to receive their Profit Share or Passive Royalty as applicable.

## PART 5A — FINANCIAL SAFEGUARDS AND TRANSPARENCY

### 5A. Director Salary Cap

**5A.1** The parties acknowledge that the Director salary of Abhay J Kumar is included as a Gross Expense and therefore directly reduces the Net Profit available for distribution to both parties.

**5A.2** The Director salary shall not exceed **AUD [INSERT AGREED AMOUNT] per annum ("Salary Cap")** without the prior written consent of the Consultant. Any director salary in excess of the Salary Cap shall be disregarded for the purpose of calculating Net Profit under this Agreement.

**5A.3** The Salary Cap shall be reviewed annually by mutual written agreement. If no written agreement is reached, the Salary Cap remains at the previously agreed level adjusted by CPI (Sydney, All Groups) for that Financial Year.

**5A.4** The Director may also be reimbursed for reasonable out-of-pocket expenses directly incurred in operating the HealthPlus International business, supported by receipts, provided such expenses are included in the Gross Expenses calculation.

### 5B. Definition of Reasonable Expenses

**5B.1** Gross Expenses shall only include expenses that are:

- (a) directly and reasonably incurred in the operation of the HealthPlus International business;
- (b) at arm's length (i.e. not paid to a related party of the Director at above-market rates without the Consultant's written consent);
- (c) supported by invoices, receipts or payroll records; and
- (d) consistent with the nature and scale of the HealthPlus International business.

**5B.2** The following expenses are **excluded** from Gross Expenses and shall not reduce Net Profit:

- (a) personal expenses of the Director or any related party that are not directly attributable to the business;
- (b) capital expenditure (which shall be amortised in accordance with Australian accounting standards, not expensed in full);
- (c) any payment to a related party of the Director in excess of the fair market rate for equivalent services; and
- (d) any expense incurred for a business activity other than the HealthPlus International healthcare workforce placement business.

**5B.3** If the Consultant disputes the classification of any expense, the matter shall be referred to an independent registered accountant for determination, with costs borne equally. The accountant's determination is final and binding.

## 5C. Monthly Financial Reporting

**5C.1** The Company shall provide the Consultant with a Monthly Management Report within 15 days of the end of each calendar month. The Monthly Management Report shall include:

- (a) total Gross Revenue received for the month;
- (b) itemised Gross Expenses for the month, grouped by category;
- (c) Director salary drawn for the month;
- (d) year-to-date totals for Revenue, Expenses and Director salary; and
- (e) estimated Net Profit year-to-date and estimated Profit Share accrued.

**5C.2** The Consultant may request copies of bank statements, invoices, payroll records or other financial documents in connection with a Monthly Management Report within 14 days of receiving the report. The Company must provide the requested documents within 7 Business Days.

**5C.3** If the Company fails to provide three or more consecutive Monthly Management Reports, the Consultant may appoint an independent accountant to audit the Company's HealthPlus International accounts, with the cost borne by the Company.

## 5D. Minimum Guaranteed Draw

**5D.1** The parties acknowledge that the Consultant is taking commercial risk without guaranteed income. In recognition of this, the Company shall pay the Consultant a minimum guaranteed monthly draw of **AUD [INSERT AGREED AMOUNT] per month ("Minimum Draw")**, commencing on the first full month after the Commencement Date.

**5D.2** The Minimum Draw is an advance against the Consultant's Profit Share entitlement and shall be reconciled at year end:

- (a) If the annual Profit Share exceeds total Minimum Draws paid in the year, the Company pays the Consultant the difference;
- (b) If the annual Profit Share is less than total Minimum Draws paid, the shortfall is carried forward as a credit to the Company against future Profit Share (not recoverable as a cash payment from the Consultant).

**5D.3** The Minimum Draw shall be reviewed annually by mutual written agreement and shall not be reduced without the written consent of the Consultant.

**5D.4** The Minimum Draw is subject to the Company having sufficient cash reserves to meet its operational obligations. If the Company lacks sufficient cash, the unpaid Minimum Draw shall be recorded as a liability and paid as soon as cash flow permits.

## PART 5B — SHARED CONTROL, VOTING RIGHTS AND MAJOR DECISIONS

### 5E. Scope of Shared Control

**5E.1** The parties acknowledge that while Abhay J Kumar retains full legal ownership and directorial authority over Westminster Green Solutions Pty Ltd, the parties have agreed to share operational control over key decisions affecting the HealthPlus International business, as set out in this Part.

**5E.2** The shared control provisions in this Part do not give the Consultant any rights under the Corporations Act 2001 (Cth), any right to act as a director, or any ability to bind the Company to third parties. They create contractual rights between the parties only.

**5E.3** Breach of the shared control provisions by the Director entitles the Consultant to seek injunctive relief and/or claim damages, and constitutes a material breach of this Agreement.

### 5F. Decisions Requiring Both Parties Consent ("Reserved Matters")

**5F.1** The following decisions affecting the HealthPlus International business require the prior written consent of both parties before implementation:

- (a) Strategic Direction:** any material change to the core business model, including entry into a new service category, withdrawal from a service category, or change to the employer of record model;
- (b) Sale or Transfer:** any sale, transfer, assignment or encumbrance of the HealthPlus International business, its client book, worker database, brand or goodwill (see also Part 4);
- (c) Major Contracts:** any single client contract or supplier agreement with an annual value exceeding AUD [INSERT THRESHOLD] or any contract with an initial term exceeding 24 months;
- (d) Capital Expenditure:** any single capital expenditure item or series of related items exceeding AUD [INSERT THRESHOLD] not already in an approved budget;
- (e) Director Salary above Cap:** any increase to the Director salary beyond the Salary Cap in clause 5A.2;
- (f) Related Party Transactions:** any transaction between the Company and a related party of the Director (including family members, associated entities or trusts) in connection with the HealthPlus International business;
- (g) New Joint Ventures or Partnerships:** any joint venture, partnership, profit sharing or collaboration agreement entered into on behalf of the HealthPlus International business;
- (h) Use of Debt:** any borrowing or financial facility secured against the assets of the HealthPlus International business exceeding AUD [INSERT THRESHOLD]; and
- (i) Brand or Trading Name Change:** any change to the HealthPlus International trading name, brand, logo or domain.

**5F.2** If the Director proceeds with a Reserved Matter without the Consultant's written consent, the Consultant may:

- (a) treat the act as a material breach of this Agreement;
- (b) seek urgent injunctive relief from a court to restrain the act; and/or
- (c) elect to treat the breach as a termination for convenience by the Company, entitling the Consultant to the remedies in clause 6.3.

## 5G. Decision-Making Process

**5G.1** For any Reserved Matter, the Director must provide the Consultant with:

- (a) written notice of the proposed decision, including all material details;
- (b) a reasonable period (not less than 10 Business Days) to consider and respond; and
- (c) any relevant documents, financial information or third-party advice relied upon by the Director.

**5G.2** The Consultant must respond in writing within the period specified. Silence is not consent.

**5G.3** If the parties cannot agree on a Reserved Matter within 20 Business Days of the Director's notice, the matter shall be referred to mediation under clause 14.2. The Director shall not implement the Reserved Matter until mediation is concluded.

**5G.4** For day-to-day operational decisions that are not Reserved Matters, the Director may act unilaterally but shall keep the Consultant reasonably informed through the Monthly Management Reports and ad hoc communication.

## 5H. Annual Business Plan and Budget

**5H.1** Within 60 days before the start of each Financial Year, the Director shall prepare and present to the Consultant a draft Annual Business Plan and Budget for the HealthPlus International business for the coming year, including:

- (a) projected Gross Revenue by service category;
- (b) projected Gross Expenses by category, including Director salary;
- (c) projected Net Profit and estimated Profit Share;
- (d) proposed capital expenditure; and
- (e) key strategic objectives for the year.

**5H.2** The parties shall negotiate in good faith to agree the Annual Business Plan and Budget within 30 days of presentation.

**5H.3** If no agreement is reached, the prior year's budget shall apply with CPI adjustment, and any proposed new expenditure items shall be treated as Reserved Matters.

## PART 8 — CONFIDENTIALITY

### 11. Confidential Information

**11.1** Each party acknowledges that in the course of this Agreement they will have access to confidential information of the other party and of the HealthPlus International business, including but not limited to: client lists, worker databases, pricing structures, financial information, international sourcing arrangements, placement methodology, business strategy, and any other information marked or understood to be confidential ("**Confidential Information**").

**11.2** Each party shall:

- (a) keep all Confidential Information strictly confidential;
- (b) not disclose any Confidential Information to any third party without the prior written consent of the other party;
- (c) use Confidential Information only for the purposes of performing their obligations under this Agreement; and
- (d) immediately notify the other party upon becoming aware of any actual or suspected breach of confidentiality.

**11.3** The confidentiality obligations in this clause survive termination or expiry of this Agreement indefinitely.

**11.4** Confidential Information does not include information that: (a) is or becomes publicly available through no fault of the receiving party; (b) was already known to the receiving party prior to disclosure; or (c) is required to be disclosed by law or court order, provided prompt notice is given to the disclosing party.



## PART 9 — RESTRAINT OF TRADE

### 12. Restraint Obligations

**12.1** During the Restraint Period following a **full exit** or termination for cause under this Agreement, the Consultant must not within the Restraint Territory:

- (a) directly or indirectly carry on, own, manage, advise, consult to, or hold any interest in a Competing Business;
- (b) solicit, induce, or entice any client or customer of HealthPlus International to cease doing business with HealthPlus International or to do business with a Competing Business;
- (c) solicit, recruit, or entice any employee, contractor, or placed worker of HealthPlus International to terminate their engagement with HealthPlus International; or
- (d) use any Confidential Information of HealthPlus International in connection with any Competing Business.

**12.2** The parties acknowledge that the Restraint Obligations are reasonable in scope, duration and geography having regard to the legitimate business interests of HealthPlus International, and that a breach would cause significant harm that would not be adequately compensated in damages.

**12.3** Restraint does NOT apply where:

- (a) the Consultant has retired under clause 7 and continues to receive Passive Royalties — in which case the Consultant may engage in any business activity that does not directly use HealthPlus International Confidential Information or directly solicit HealthPlus International clients;
- (b) the Agreement was terminated by the Company for convenience under clause 6.1(b); or
- (c) the parties agree in writing to waive the restraint.

**12.4** **Abhay J Kumar is equally bound:** If Abhay J Kumar causes the Company to terminate this Agreement for convenience, or if the Company dissolves the HealthPlus International business within the Restraint Period following exit, Abhay J Kumar personally shall not carry on a substantially similar healthcare workforce placement business in direct competition with any business the Consultant establishes during the Restraint Period.

**12.5** The restraint obligations in this clause are intended to be read as a series of separate restraints of reducing scope. If any restraint is unenforceable in its full scope, it shall be read down to the minimum extent necessary to make it enforceable.



## PART 10 — DISSOLUTION OF HEALTHPLUS INTERNATIONAL

### 13. Dissolution Events

#### 13.1 A Dissolution Event occurs if:

- (a) the Consultant gives written notice of full exit under clause 8 AND the Director does not elect to continue the business independently;
- (b) both parties agree in writing to dissolve the HealthPlus International business;
- (c) the Company becomes insolvent or enters liquidation; or
- (d) a court orders the winding up of the Company.

#### 13.2 A Dissolution Event is NOT triggered by:

- (a) the Retirement of the Consultant under clause 7 (Passive Royalty model);
- (b) the death of either party (which is governed by clause 9 and 10); or
- (c) termination by the Company for cause or convenience (which is governed by clause 6).

#### 13.3 Upon a Dissolution Event, the parties shall:

- (a) cease accepting new business under the HealthPlus International trading name within 30 days;
- (b) honour all existing client placements and worker obligations until their natural conclusion;
- (c) collect all outstanding receivables and settle all outstanding payables; and
- (d) distribute the Net Assets of the HealthPlus International business 50% to Abhay J Kumar and 50% to the Consultant (or their estate), within 60 days of finalising accounts.

#### 13.4 Net Assets on dissolution means: total realisable assets of the HealthPlus International business minus all liabilities (including tax) as at the date of dissolution.

## PART 11 — SCENARIO MATRIX (PLAIN ENGLISH SUMMARY)

*The following scenarios summarise how this Agreement operates in practice. In all cases, the formal clauses above govern. This matrix is for reference only.*

### SCENARIO 1 — Normal Operations

Both parties active. Reji builds business and manages international operations. Monthly financial reports provided within 15 days. Director salary capped at agreed amount. Minimum guaranteed monthly draw paid to Reji as advance against profit share. Profit split 50/50 annually within 60 days of 30 June.

### SCENARIO 2 — Reji Retires

Reji gives 6 months notice of Retirement. HealthPlus continues under Abhay. Reji receives 50% of Net Profit as Passive Royalty — perpetually, for as long as the business generates profit. No duties required. Restraint of trade does NOT apply during retirement while Passive Royalties are being received.

### SCENARIO 3 — Reji Fully Exits

Reji gives 6 months notice and surrenders all entitlements. If Abhay continues the business, Reji receives 50% of goodwill value (independently valued) + accrued profit share. If Abhay does not continue, HealthPlus dissolves and net assets are split 50/50. 3-year restraint of trade applies in NSW.

### SCENARIO 4 — Abhay Terminates for Cause (fraud/breach)

Agreement ends immediately. Reji receives accrued profit share to date only. No goodwill payment. No ongoing royalties. 3-year restraint applies.

### SCENARIO 5 — Abhay Terminates for Convenience

Abhay gives 6 months notice. Reji receives accrued profit share + 50% of independently valued goodwill. No ongoing royalties after payment. 3-year restraint applies. Importantly — Abhay is also restrained from operating same business in direct competition with any business Reji establishes during the restraint period.

### SCENARIO 6 — Reji Dies

Next of Kin receives 50% of Net Profit (or Passive Royalty if retired) for up to 10 years from date of death. After 10 years, all entitlements cease. Business continues under Abhay. No duties or restraints apply to Next of Kin.

#### SCENARIO 7 — Abhay Dies

Company continues as a separate legal entity. Obligations pass to estate and successor director. If estate winds up the business within 12 months, dissolution occurs — assets split 50/50. If business continues, Reji continues to receive profit share or passive royalty.

#### SCENARIO 8 — Business is Sold

Reji receives 50% of Net Sale Proceeds, paid as each tranche of consideration is received. Abhay must give 60 days notice and full sale details before completing any sale. Reji has no veto but is entitled to their 50% of net proceeds regardless.

#### SCENARIO 9 — Dispute Arises

Parties must attempt mediation within 30 days of written notice of dispute. If mediation fails within 30 days, either party may commence proceedings in the courts of New South Wales. Governing law: NSW.

## PART 12 — GENERAL PROVISIONS

### 14. Dispute Resolution

**14.1** If a dispute arises between the parties in connection with this Agreement, the parties must first attempt to resolve the dispute by good faith negotiation within 14 days of one party notifying the other of the dispute in writing.

**14.2** If the dispute is not resolved by negotiation within 14 days, the parties must submit the dispute to mediation administered by the Australian Disputes Centre or a mediator agreed by the parties. The cost of mediation shall be shared equally.

**14.3** If mediation is unsuccessful within 30 days of the mediator being appointed, either party may commence legal proceedings in the courts of New South Wales.

**14.4** Notwithstanding this clause, either party may seek urgent injunctive or other equitable relief from a court without first complying with this clause.

### 15. Amendments

**15.1** This Agreement may only be amended by a written document signed by both parties.

**15.2** No waiver of any provision of this Agreement is effective unless in writing. A waiver on one occasion does not constitute a waiver on any future occasion.

### 16. Entire Agreement

**16.1** This Agreement constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior negotiations, representations, warranties and agreements.

**16.2** Each party acknowledges they have not relied on any representation, warranty or statement not expressly set out in this Agreement.

### 17. Severability

**17.1** If any provision of this Agreement is held to be invalid or unenforceable, that provision shall be read down to the minimum extent necessary to make it valid and enforceable. If it cannot be read down, it shall be severed from the Agreement. The remaining provisions shall continue in full force and effect.

### 18. Governing Law and Jurisdiction

**18.1** This Agreement is governed by and construed in accordance with the laws of New South Wales, Australia.

**18.2** The parties irrevocably submit to the exclusive jurisdiction of the courts of New South Wales and the Federal Court of Australia.

## 19. Notices

**19.1** Any notice under this Agreement must be in writing and delivered by email (with delivery confirmation) or registered post to the addresses set out in the Parties section of this Agreement.

**19.2** A notice sent by email is deemed received at the time of successful transmission. A notice sent by registered post is deemed received two Business Days after posting.



EXECUTION

EXECUTION  
NOTE

Both parties must sign this Agreement in the presence of a witness. The witness must be an adult who is not a party to this Agreement. Each party should retain a signed original. This Agreement takes effect on the date it is fully executed by both parties.

EXECUTED BY:

Westminster Green Solutions Pty Ltd (ABN 13 155 901 723) trading as Health Plus International

Signature:

Date:

Full Name: Abhay J Kumar

Role: Sole Director

Address: Unit 4, 44-46 Keeler Street, Carlingford NSW 2118

Witness Signature:

Date:

Witness Name:

Witness Address:

EXECUTED BY:

Reji Varghese — Consultant

Signature:

Date:

Full Name: Reji Varghese

Role: Business Development Consultant

Address: 26 Mubo Crescent, Holsworthy NSW 2173

Witness Signature:

Date:

Witness Name:

Witness Address:

People. Care. Compliance.

HealthPlus International — Westminster Green Solutions Pty Ltd ABN 13 155 901 723